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**IN THE FOURTH JUDICIAL DISTRICT COURT  
UTAH COUNTY, STATE OF UTAH**

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| STATE OF UTAH,<br><br>Plaintiff,<br><br>vs.<br><br>TYLER JAMES ROBINSON,<br><br>Defendant. | <b>REPLY IN SUPPORT OF MOTION<br/>FOR LIMITED INTERVENTION</b><br><br>Case No: 251403576<br>Judge Tony F. Graf, Jr. |
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**Statement of Matters Raised in Response Filings**

Through their Motion for Limited Intervention, Proposed Media Intervenors<sup>1</sup> asked the Court to protect the press’s and the public’s access rights by entering an Order that does three things: (1) formally recognizes limited intervention by the Media Intervenors, (2) requires the parties to provide Media Intervenors with prompt notice of attempts to limit access, and (3) directs that Media Inventors be given a meaningful opportunity to oppose access restrictions. *See* Mot. for Limited Intervention & Request for Notice [Doc. 164].

In a November 13, 2025 Order, the Court recognized receipt of requests for notice of motions to classify or close records in this case and ordered that “all future motions to classify a record in

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<sup>1</sup> The Salt Lake Tribune and its reporter Jessica Schreifels (together, “The Tribune”); St. George News; The Associated Press; Fox13 News; Millard County Chronicle Progress; KOAL (Castle Country Radio); KUER-FM; Lehi Free Press; The Park Record; CBS Broadcasting Inc.; The New York Times Company; CNN; Fox News Media; and Law & Crime Network.

this case must be served on representatives of the press who requested notice.” *See* Order Requiring Notice & Service [Doc. 171].

After that Order, the State and Mr. Robinson both responded to Media Intervenors’ Motion. The State does not oppose the relief Media Intervenors seek. *See* State Resp. to Mot. for Limited Intervention (“State Resp.”) [Doc. 187]. And Mr. Robinson agrees to “comply with the Court’s order requiring the party filing a motion to reclassify a record to service such motion on representatives of the media who have requested notice.” *See* Robinson Resp. to Mot. for Limited Intervention (“Robinson Resp.”) [Doc. 185]. However, Mr. Robinson asks the Court to deny Media Intervenors’ request for “more formal status in this litigation.” *See id.* at 3. Even in arguing against limited intervention, though, Mr. Robinson appears untroubled by the protections the Media Intervenors ask the Court to implement:

Having now requested notice, Proposed Media Intervenors are entitled to notice and the opportunity to be heard regarding motions to reclassify court records and closure requests. In this regard, *they have standing* and it is anticipated that the Court will permit the media to be heard on these issues in the manner the Court deems appropriate.

*Id.* at 7 (emphasis added). To the extent Mr. Robinson truly opposes the relief the Media Intervenors seek, that opposition appears to center on the durability of Media Intervenors’ involvement in the case. Mr. Robinson’s preference is that the Media Intervenors operate under “event-specific protocols”—that is, that the Media Intervenors make a fresh appearance each time a party asks to reclassify a record or close a hearing and argue anew that they have standing to do so. *See id.* at 5.

Mr. Robinson has the wrong side of this argument. Utah law does recognize limited intervention—that is, appearance as a limited-purpose party to be heard in discrete issues—in a variety of contexts, including for members of the media seeking to protect access rights. And given the Court’s subsequent written orders regarding access and the responses filed by the State and Mr. Robinson, there is now little left in dispute. On reply, then, the Media Intervenors have only two

modest requests: (1) the Court enter an order formally recognizing the Media Intervenors as limited-purpose parties, as that recognition promotes efficiency, tracks established practices in Utah courts, and may ultimately prove consequential, particularly in the event of an appeal, and (2) the Court enter an order confirming that the notice-and-service provisions contained in its November 13, 2025 Order apply not only to “motions to classify a record,” but also to other attempts to limit press or public access, including requests to close proceedings or limit electronic media coverage.

### **Argument**

#### **I. In Its November 13, 2025 Order, the Court Set a Durable Rule Regarding Notice and Service for Requests to Classify Records, and the State and Mr. Robinson Have Agreed to Abide by That Rule.**

The Court’s November 13, 2025 Order provides durable instruction for handling record-classification motions going forward: “all future motions to classify a record must be served on representatives of the press who requested notice.” *See* Order Requiring Notice & Service [Doc. 171]. Both the State and Mr. Robinson have recognized and agreed to abide by that instruction. *See* State Resp., at 1–2 [Doc. 187] (“The State agrees that the parties should be required to serve the Media Outlets with copies of the types of motions they have identified, and that Media Outlets should also have an opportunity to appear and be heard on those discrete issues as limited-purpose parties.”); Robinson Resp., at 3 [Doc. 185] (“Of course, Mr. Robinson’s counsel will comply with the Court’s order requiring the party filing a motion to reclassify a record to serve such motion on representatives of the media who have requested notice.”). That order and agreement resolve the threshold request made by the Media Intervenors in their Motion to Intervene.

#### **II. Utah Recognizes Limited Intervention for Media Entities Making Access Challenges, and Formal Recognition Streamlines Both Underlying Proceedings and Appeals.**

The State also agrees that the Media Intervenors may formally appear as limited-purpose parties to be heard on issues that relate to access, classification, and closure. *See* State Resp., at 3

[Doc. 187] (“The State therefore agrees that the Court should allow the Media Outlets to appear as limited-purpose parties to address those issues.”). Mr. Robinson disagrees, arguing that “the Court should not permit the Proposed Media Intervenors to become a named party, even a limited-purpose party, in this case.” Robinson Resp., at 7 [Doc. 185].

Mr. Robinson suggests that limited intervention by the Media Intervenors would be unusual. It would not. As the News Media explained in their parallel Motion to Intervene, Utah courts, “including in this District, routinely grant requests in criminal proceedings for limited intervention by the news media.” *See* News Media Mot. to Intervene, at 4 & n.1 [Doc. 197] (collecting cases). Granting limited intervention would help ensure that disputes over access, classification, and closure are handled efficiently, on a regular timeline, and by an established set of procedures. It would also ensure that any appeal from a closure decision could take place under traditional rules. *See, e.g., Society of Prof. Journalists v. Bullock*, 743 P.2d 1166, 1176 (Utah 1987) (stressing the importance of media parties taking affirmative “steps to assert their right to access” at the district-court level); *F.L. v. Court of Appeals*, 2022 UT 32, ¶ 30, 515 P.3d 421 (“[E]xtraordinary relief is authorized because the court of appeals made a mistake of law in not allowing her to intervene for the limited purpose of asserting her privilege in her confidential therapy records.”).

When media entities seek access to records or otherwise oppose closure, limited intervention is more than a *permissible* approach—it’s the preferred one. *See, e.g., Angilau v. United States*, No. 2:16-cv-992, 2017 WL 9496068 (D. Utah July 27, 2017). The Media Intervenors therefore reaffirm their request that they be formally recognized as intervenors in a limited capacity to contest access, classification, and closure.

### **III. The Notice-and-Service Rule Articulated by the Court Should Apply to Any Attempt to Limit Access, Including Requests to Close Proceedings.**

Finally, the Media Intervenors ask that the Court enter an order confirming that the provisions of its November 13, 2025 Order related to record-classification challenges will also apply to other attempts to limit access in this matter, including requests to exclude the press or public from court proceedings. Both the State and Mr. Robinson appear to agree that other closure attempts could be efficiently addressed through the same procedures outlined in the November 13, 2025 order, including notice and service of the motion that seeks to limit access, followed by an opportunity to be heard at a closure hearing and in a prior written response. *See Robinson Resp.*, at 2 [Doc. 185] (acknowledging media rights for both “the potential sealing of a record or the closing of a hearing”); *State Resp.*, at 3 [Doc. 187] (“The State also agrees . . . that the parties should serve the Media Outlets with any motion that seeks to limit access to court hearings . . .”). The Media Intervenors therefore ask the Court to order that procedures regarding notice and service and an opportunity to be heard on access issues apply equally to attempts to reclassify records, to close or restrict attendance at court proceedings, and to otherwise limit press or public access in this matter.

### **Conclusion**

For the reasons detailed above, Media Intervenors ask the Court to enter an order granting limited intervention and requiring prompt notice and an opportunity for the Media Intervenors to be heard on all attempts to limit press or public access to proceedings.

Respectfully submitted: November 26, 2025.

By: /s/ C. Michael Judd  
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**CERTIFICATE OF SERVICE**

I hereby certify that on November 26, 2025, I electronically filed the foregoing with the Court using the electronic filing system, which sent notification of such filing to all attorneys of record.

/s/ C. Michael Judd